

Raman Ispat (Pvt.) Ltd. & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.

Allahabad High Court · Division Bench · 4 September 2009 · 2009 SCC OnLine All 1064 · Civil Misc. Writ Petition No. 27290 of 2008 (with W.P. Nos. 16147 of 2009 and 16149 of 2009) · **All three connected writ petitions dismissed with costs; the Executive Engineer's order declining enhancement of load until the arrears of M/s Sai Steels are cleared is upheld.**

HEADNOTE

Where a purchaser of premises seeks a fresh electricity connection or enhancement of load to the same premises, the distributor may lawfully stipulate, as a condition of supply, the clearing of the arrears left by the previous consumer of those premises. Although past electricity dues are not a charge on the premises and a transferee/subsequent occupant with no privity cannot be saddled with a predecessor's dues (*Isha Marbles; Ahmedabad Electricity Co.*), the Supreme Court in *PVVNL v. DUS Steels* held that when the purchaser approaches the distributor for a fresh connection or enhanced load to the same premises, the distributor can stipulate payment of the arrears as a condition, and such a stipulation is neither unreasonable nor arbitrary; the amended Clause 4.3(f)(i) of the U.P. Electricity Supply Code, 2005 further makes seller and purchaser jointly and severally liable and the outstanding dues a first charge on the company's assets. On the facts, the Court, lifting the corporate veil, found R.P. Singh to be the person behind M/s Sai Steels, M/s Singh Alloys and the petitioner M/s Raman Ispat, and held that the recovery of Sai Steels' dues could be made a condition precedent to enhancement of Raman Ispat's load; the petitioners, having spun a web of acquisitions and name-changes and not come with clean hands, were denied relief and the petitions dismissed with costs.

FACTUAL SUMMARY

M/s Sai Steels, a partnership firm in which Ram Pal Singh was a partner, held an electricity connection from the U.P. State Electricity Board (agreement of 1985) and defaulted on dues of about Rs. 50 lakh before applying for permanent disconnection in 2001. The connected M/s Singh Alloys Pvt. Ltd. had mortgaged the industrial plot to PICUP, which took possession under s.29 of the State Financial Corporation Act, 1951 and auctioned it to M/s HM Steels; M/s Raman Ispat Pvt. Ltd. — a company in which Ram Pal Singh was a director — subsequently bought the plot from HM Steels and from another purchaser, becoming owner of the whole premises. When Raman Ispat applied to enhance its sanctioned load, PVVNL invoked Clause 4.3(f) and required the arrears of Sai Steels to be cleared first. The Executive Engineer's order dated 09.03.2009 rejecting that request was challenged, together with a prayer to restrain recovery and encashment of a cheque for Rs. 50,34,016, in three connected writ petitions (W.P. Nos. 27290/2008, 16147/2009 and 16149/2009).

REUSABLE CONSTRUCTIONS

1. A distributor may lawfully stipulate clearance of the previous consumer's arrears as a condition of a fresh connection, restoration, or enhancement of load to the same premises; such a stipulation is neither unreasonable nor arbitrary (following *PVVNL v. DUS Steels*). [p. 507-508](#)
2. Past electricity dues are not a charge on the premises and cannot be foisted on a transferee with no privity; a transferee becomes liable only under a statutory rule — here the amended Clause 4.3(f)(i), which makes seller and purchaser jointly and severally liable and the outstanding dues a first charge on the company's assets. [p. 505-508](#)
3. The corporate veil may be lifted to fix arrears liability where a common controlling person uses a web of firms, acquisitions and name-changes to escape recovery; an applicant entity that is the alter ego of the defaulter cannot claim the no-privity protection. [p. 509-512](#)
4. A litigant who withholds material facts and obtains interim relief by painting a false picture does not come with clean hands and is refused discretionary relief. [p. 512](#)

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)

RATIO

Clearing predecessor's arrears may be stipulated as a condition of a fresh connection / load enhancement to the same premises

QUESTION

May a distributor require the purchaser of premises to clear the previous consumer's arrears as a condition of a fresh connection or enhancement of load to the same premises?

HOLDING

Yes. Following *PVVNL v. DUS Steels*, though past dues are not a charge on the premises and cannot be recovered from a transferee as such, the distributor may, when the purchaser seeks a fresh connection or enhanced load to the same premises, stipulate clearing of the arrears as a condition of supply; such a stipulation is not unreasonable or arbitrary. The amended Clause 4.3(f)(i) reinforces this by making the seller and purchaser jointly and severally liable for the outstanding dues and making those dues a first charge on the company's assets, entered in the agreement with the new applicant. p. 505-508

EVIDENCE *"The licensee can stipulate that the past dues be cleared before the electricity supply is restored to the premises, or a fresh connection is provided, or load is enhanced to the factory on the same premises. Such a stipulation cannot be termed as unreasonable or arbitrary."* p. 508

INTERPLAY · UP-2005::4.3(f)

RATIO

Lifting the corporate veil to fix arrears liability where the same person controls the defaulting and the applicant entities

QUESTION

Can the corporate veil be lifted to hold the applicant liable for the defaulting entity's dues where a common controlling person has used a web of acquisitions and name-changes to escape recovery?

HOLDING

Yes. The department was justified in lifting the veil and finding R.P. Singh to be the person behind M/s Sai Steels (the defaulter), M/s Singh Alloys and the petitioner M/s Raman Ispat, so that the dues of Sai Steels could be recovered from him and made a condition precedent to enhancement of Raman Ispat's load. The petitioners failed to prove the absence of relationship between the entities, withheld material facts to obtain an interim order, and did not come with clean hands; all three petitions were dismissed with costs. p. 509-512

EVIDENCE *"The department, however, appears to have lifted the veil and has found that Shri R.P. Singh is the person behind all these companies and is liable to pay the due of M/s Sai Steels Ltd."* p. 510

EVIDENCE *"The petitioners have thus not come to the Court with clean hands and are not entitled to any relief."* p. 512

PRINCIPLE TAGS

arrears-follow-premises-not-person-fresh-connection-vs-transfer Past dues are not a charge on premises and cannot be foisted on a mere transferee, but a distributor may stipulate clearance of arrears as a condition of a fresh connection or load enhancement to the same premises. Lead authorities: *Pashchimanchal Vidyut Vitran Nigam Ltd. v. DUS Steels & Alloys Pvt. Ltd.*, p. 507-508

arrears-run-with-the-premises Under the amended Clause 4.3(f)(i), clearing the outstanding dues on the premises is a condition of a fresh connection/enhancement, the dues being a first charge on the company's assets and seller and purchaser jointly and severally liable. p. 505-506

lifting-corporate-veil-to-fix-arrears-liability Where a common controlling person uses a web of firms/companies and acquisitions to escape recovery, the veil may be lifted to hold the applicant entity liable for the defaulter's arrears as a condition of supply. p. 510-512

no-relief-to-litigant-without-clean-hands A petitioner who withholds material facts and obtains an interim order by painting a false picture is not entitled to discretionary relief. p. 512

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — APPLICABILITY OF THE AMENDED CLAUSE 4.3(F)(I) TO A STATUTORY AUCTION SALE BY A FINANCIAL CORPORATION PRIOR TO 11.8.2006

The petitioner argued Clause 4.3(f)(i) (in force 11.8.2006) did not apply to the earlier PICUP sale under the State Financial Corporations Act, 1951, but the petitions failed on the veil-lifting and clean-hands findings and the point was not decided in the petitioner's favour. p. 507-508

RELATED CASES — SEE ALSO

SCJ-655 — Lakshmi Oil & Vanaspati (2010) — Clause 4.3(f); arrears not a charge, transferee liable only under statutory rules.

SCJ-681 — Trinmurti Buildwell (2010) — Clause 4.3(f); arrears attaching to premises and the fresh-connection condition.

SCJ-271 — RKG Industries LLP (2023) — Clause 4.3(f) purchaser's liability for a predecessor's dues.

SCJ-036 — Jitendra Kumar Gupta (2017) — Clause 4.3(f); arrears on transfer of premises.

SCJ-005 — Amir Ahmad (2025) — Clause 4.3(f); auction-purchaser and outstanding dues.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Pashchimanchal Vidyut Vitran Nigam Ltd. v. DUS Steels & Alloys Pvt. Ltd.</i> JT 2008 (12) SC 672 (decided 7.11.2008) Supreme Court	Supply of electricity is a sale of goods; a transferee/subsequent occupant with no privity cannot be asked to pay a predecessor's dues as the amount is not a charge on the premises, but when the purchaser seeks a fresh connection or enhanced load to the same premises the distributor may stipulate clearing of the past dues as a condition of supply, and such a stipulation is neither unreasonable nor arbitrary.	Relied on to uphold the licensee's stipulation of clearing Sai Steels' arrears as a condition of enhancing Raman Ispat's load to the same premises. p. 508	Respondent	Relied on
<i>Isha Marbles v. Bihar State Electricity Board</i> (1995) 2 SCC 648 Supreme Court	It is impossible to impose on an auction-purchaser (a third party with no privity with the previous consumer) a liability for the electricity dues incurred by the previous owner/occupier.	Cited by the petitioner for the proposition that past dues cannot be enforced against a subsequent purchaser; distinguished/limited in light of DUS Steels where a fresh connection/enhancement to the same premises is sought. p. 506-508	Petitioner	Distinguished
<i>Ahmedabad Electricity Co. Ltd. v. Gujarat Inns (P) Ltd.</i> (2004) SCC 587 (as cited) Supreme Court	Past electricity dues are not a charge over the property; the auction-purchaser may seek supply of energy without being saddled with the previous owner's dues.	Cited by the petitioner alongside Isha Marbles; not applied to defeat the licensee's stipulation given DUS Steels. p. 506-507	Petitioner	Distinguished

SCJ-225 · Raman Ispat (Pvt.) Ltd. & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors. · 2009 SCC OnLine All 1064 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.